

TAB 14



Board of Education Report

File #: Rep-222-23/24, **Version:** 1

Adoption of the Negative Declaration for the 49th Street Elementary School Major Modernization Project April 9, 2024

Office of Environmental Health & Safety

Action Proposed:

Review and adopt the Negative Declaration (ND) for the proposed 49th Street Elementary School Major Modernization Project (Project) prepared in compliance with the California Environmental Quality Act (CEQA; Public Resources Code §21000 et seq.) and State CEQA Guidelines (California Code of Regulations, Title 14, Division 6, Chapter 3 §15000 et seq.).

Background:

On November 3, 2020, voters in Los Angeles Unified School District (Los Angeles Unified or District) passed Measure RR (School Upgrades and Safety Measure) as a funding mechanism to help address the significant and unfunded needs of District public school facilities. Under Measure RR and in conjunction with other, ongoing Facilities Services Division (Facilities) programs, the District is proposing to upgrade, modernize, and replace aging and deteriorating District school facilities; update technology; and address District school facilities inequities to provide students with physically and environmentally safe, secure, and updated school facilities that support 21st century learning at hundreds of neighborhood schools District-wide.

On October 12, 2021, the Board approved project definitions for the due diligence, planning, and feasibility activities necessary to propose scope recommendations, budgets, and schedules for the major modernization projects at five District schools, including the 49th Street Elementary School campus (Campus) (Board Report No. 085-21/22). On November 15, 2022, the Board approved the project definition for the Campus' major modernization (Board Report No. 074-22/23) and budget of \$86.3 million with construction anticipated to begin Q1-2026 and be completed in Q2-2029.

The Project is located within the 5.73-acre school campus located at 750 East 49th Street (Assessor's Parcel Number [APN] 5108-011-909 and -910) within the South Park neighborhood in the City of Los Angeles (Board District 7, Region East). Construction of the 49th Street ES Campus was completed in the early 1910s, and the school was dedicated in 1914. All existing buildings were constructed between 1923 and 1969.

The proposed Project involves the demolition of three permanent buildings (West Classroom Building, Auditorium, Cafeteria), the lunch pavilion, and removal of three sheltered corridors (No. 1, 3 and 4).

The proposed Project would construct new facilities, including a one-story Kindergarten Classroom Building with four classrooms and associated support spaces; a one-story Multi-Purpose Room/Food Services/Library Building; a new lunch shelter, two shade structures; and new covered walkways. The proposed Project also includes minor interior improvements in existing buildings that would convert the existing library and one classroom into administrative workrooms and exterior painting for all remaining buildings and structures on the Campus. No change to school's capacity or total.

number of classrooms are proposed as part of the Project. At completion of the proposed Project, the Campus would contain 43 standard-sized classrooms equal to the existing number of standard classrooms.

The proposed Project would maintain a minimum of 51 parking spaces, an increase from the existing 41 parking spaces, and relocate the existing staff and visitor parking lots to the southwestern portion of the Campus along East 50th Street. A temporary fully electric interim relocatable kitchen/scramble building and one interim relocatable restroom building would be installed as part of construction activities.

The proposed Project also includes utility upgrades; new playgrounds, including play equipment/furnishings, striping, natural grass fields with irrigation, cool coating asphalt, and two play structures; new outdoor learning environments; a new parking lot with photovoltaic panels; landscaping and irrigation; hardscaping; and installation of a new trash enclosure, service yard, loading zone, and transformer yard; and fencing, gates, site furnishings, and accessories.

The site is not on any hazardous waste lists under Section 65962.5 of the Government Code. A Preliminary Environmental Assessment-Equivalent (PEA-E) was conducted for the proposed Project in accordance with the Department of Toxic Substances Control (DTSC) guidelines. A Removal Action Work (RAW) Plan has been prepared for the proposed Project to address the removal of arsenic, lead, and total petroleum hydrocarbon (TPH) impacted soil located within the Campus. The RAW summarizes the results and recommendations of the PEA-E investigation; provides estimates the surface area and volumes of soil impacted with chemicals of concern; and proposes measures to remove the arsenic, lead, and TPH concentrations in the affected areas of the site to levels below regulatory screening levels for the protection of human health and the environment. The recommendations and removal actions described in the RAW would be implemented as part of construction activities. There is no direct student and staff exposure to the impacted soils since the affected soils are under asphalt pavement. The RAW, which includes health and safety procedures, will ensure student and staff are not exposed to impacted soils during the removal work.

Prior to adopting the ND for the Project (State Clearinghouse Number 2023110270) and approving the Project, the District is required to comply with the provisions of CEQA, Public Resources Code §21000, et seq., and State CEQA Guidelines, Title 14 California Code of Regulations §15000 et seq. The Office of Environmental Health & Safety (OEHS) evaluated the Project to determine its potential impacts on the environment in accordance with CEQA and the State CEQA Guidelines.

Environmental review of the Project found that there would be no significant impacts as a result of construction and operation of the Project with the implementation of LAUSD's Standard Conditions of Approval. This evaluation, as documented in the Initial Study (IS), resulted in the preparation of a ND. The District circulated the IS/ND for a 30-day public review period from November 8, 2023, to December 8, 2023. Copies of the IS/ND, PEA-E, and RAW were available for review electronically on the OEHS website and on the State Clearinghouse website and printed copies made available for public review at OEHS District Headquarters at Beaudry and at 49th Street Elementary School.

The District posted the Notice of Intent to Adopt a Negative Declaration (Notice of Intent or NOI) on the OEHS website during the public review period, mailed the NOI to all owner/occupants located within a 0.25-mile radius of the Project site, to parents/guardians of students, and published the NOI in two local newspapers (Daily News and La Opinión). The District filed the NOI with the Los Angeles County Clerk and with the State Clearinghouse for distribution to potentially affected State agencies, local agencies, tribal agencies pursuant to AB 52, and known interested parties.

During the public review period, the District held a meeting at 49th Street Elementary School with faculty and staff on November 14, 2023, and a public community meeting on November 15, 2023, to provide information about the Project and receive comments on the IS/ND. The public community meeting was advertised along with the NOI through direct mailing of occupants within 0.25-mile of the Project site, door-to-door distribution of event flyers, and on Daily News and La Opinión. The meetings included an overview of the proposed Project and the contents and findings of the IS/ND, and gave faculty, staff, agencies, organizations, parents/guardians, and community members the opportunity to make verbal and written comments on the Project and the IS/ND.

At the end of the public review period, the District received comment letters from three agencies and written and verbal comments from individuals received during the community meetings. All letters and written comments were responded to by the District and are included in the attached Responses to Comments (RTC). The RTC also identifies revisions to the Initial Study's Air Quality, Energy, and Greenhouse Gas (GHG) sections that updated four tables to include adjusted outputs generated by the updated modeling of the proposed Project's short-term and long-term criteria air pollutants, GHG emissions, and electricity consumption. The updated modeling does not result in any new exceedance of thresholds or new significant impacts. All District Standard Conditions would continue to sufficiently reduce emissions from project operations and construction activities. No mitigation measures are necessary. The requirements set forth in the CEQA Guidelines Section 15073.5 regarding recirculation are not met.

Expected Outcomes:

Staff anticipates that the Board will review and make a determination on the attached Resolution to adopt the ND pursuant to CEQA and State CEQA Guidelines. This action is required for the Board to consider approval of the Project.

Board Options and Consequences:

A "Yes" vote to adopt the Negative Declaration would enable the Board to consider approval of the Project.

A "No" vote to adopt the Negative Declaration would prevent the Board from approving the proposed Project, and the proposed Project could not proceed into construction.

Policy Implications:

This action does not change District policy. This action helps facilitate the Facilities Services Division Strategic Execution Plan and supports the goals and objectives of the School Upgrade Program (SUP). On August 24, 2021, the Board adopted an update to the SUP to integrate Measure RR funding and priorities into its operational framework and approved the Measure RR Implementation Plan (Implementation Plan) to help guide the identification of sites and development of project proposals (Board Report No. 027-21/22). The Implementation Plan included, among other things, the development of seven major modernization projects, one in each Board District and the Project is in Board District 7.

Budget Impact:

This action does not have a budget impact.

Student Impact:

The proposed Project, once completed, will help ensure that the students attending the school are provided with a safe and healthy environment, and up-to-date facilities that promote learning.

Equity Impact Table:

Component	Score	Score Rationale
Recognition	4	Implementation of the proposed Project demonstrates the District's commitment to support major rehabilitation of community schools that have documented substantial physical deficiencies in historically redlined areas encompassing the 49 th Street Elementary School, a Title 1 school, which currently serves a K-5 student population that is 87.5% Latino, 8.2% African American, and 46.1% ESL learners.
Resource Prioritization	4	The proposed Project at 49 th Street Elementary School is one of the seven school sites selected for major modernization based on a prioritization process where needs are assessed using weighted facilities-based datasets that best express a school's physical condition. The school is identified in the highest quintile in the Student Equity Needs Index (SENI) used to score recipients of TSP/ESSER III funds.
Results	3	Implementation of the proposed Project establishes early education facilities that improves the physical capacity of District programs to influence opportunity and achievement gaps among K-5 students of 49 th Street Elementary School.
TOTAL	11	

Issues and Analysis:

Environmental review of the proposed Project found that, with the incorporation of District Standard Conditions and Approvals, Project Design Features, as well as all applicable state, federal, and local regulations, there would be no significant impacts as a result of the Project.

The District is the "Lead Agency" as defined in the State CEQA Guidelines §§15050-15053, and the Board shall review and consider the Negative Declaration and its supporting documents and comments.

Attachments:

Attachment A: Resolution of the Los Angeles Unified School District Board Adopting the Negative Declaration for the 49th Street Elementary School Major Modernization Project.

Due to the file size the following attachments may be view/downloaded from the links below:

Attachment B: [Initial Study/Negative Declaration and Appendices](https://drive.google.com/file/d/1hg1IINLG_TvaLcchF7gG1-UjrHoIk6_7/view?usp=sharing)
<https://drive.google.com/file/d/1hg1IINLG_TvaLcchF7gG1-UjrHoIk6_7/view?usp=sharing>

Attachment C: [Responses to Comments, Revisions to the Initial Study, and Updated Air Quality and Greenhouse Gas Emissions Background and Modeling Data](https://drive.google.com/file/d/1HQM6F6lhpW2Yki8wP84Oa--ZYFxjuC/view?usp=sharing)
<<https://drive.google.com/file/d/1HQM6F6lhpW2Yki8wP84Oa--ZYFxjuC/view?usp=sharing>>

Submitted:

03/07/24

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RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED BY:


PEDRO SALCIDO
Deputy Superintendent
Business Services & Operations
ANDRES E. CHAIT
Chief of School Operations

REVIEWED BY:


DEVORA NAVERA REED
General Counsel

APPROVED AND PRESENTED BY:


CARLOS A. TORRES
Director
Office of Environmental Health & Safety

☒ Approved as to form.

REVIEWED BY:


NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement.



**LOS ANGELES UNIFIED SCHOOL DISTRICT
Board of Education Report**

**RESOLUTION OF THE LOS ANGELES UNIFIED SCHOOL DISTRICT BOARD OF
EDUCATION ADOPTING THE NEGATIVE DECLARATION FOR THE 49TH STREET
ELEMENTARY SCHOOL MAJOR MODERNIZATION PROJECT**

Whereas, on November 3, 2020, voters in Los Angeles Unified School District passed Measure RR (School Upgrades and Safety Measure) as a funding mechanism to help address the significant and unfunded needs of LAUSD public school facilities; and

Whereas, under Measure RR and in conjunction with other, ongoing LAUSD Facilities programs, the District is proposing to upgrade, modernize, and replace aging and deteriorating District school facilities; update technology; and address District school facilities inequities to provide students with physically and environmentally safe, secure, and updated school facilities that support 21st century learning at hundreds of neighborhood schools District-wide; and

Whereas, on October 12, 2021, the Board approved project definitions for the due diligence, planning, and feasibility activities necessary to propose scope recommendations, budgets, and schedules for major modernization projects at 49th Street Elementary School (Board Report No. 085-21/22). On November 15, 2022, the Board approved the project definition for the Campus' major modernization (Board Report No. 074-22/23); and

Whereas, the proposed Project is located within the 5.73-acre school campus located at 750 East 49th Street (Assessor's Parcel Number [APN] 5108-011-909 and -910), within the South Park neighborhood in the City of Los Angeles (Board District 7, Region East); and

Whereas, the proposed Project involves the demolition of three permanent buildings (West Classroom Building, Auditorium, Cafeteria), the lunch pavilion, and removal of three sheltered corridors (Nos. 1, 3 and 4); and

Whereas, the proposed Project would construct new facilities, including a one-story Kindergarten Classroom Building with four classrooms and associated support spaces; a one-story Multi-Purpose Room/Food Services/Library Building; a new lunch shelter, two shade structures; new 51-space parking lot, and new covered walkways; and

Whereas, the proposed Project includes minor interior improvements in existing buildings that would convert the existing library and one classroom into administrative workrooms and exterior painting for all remaining buildings and structures on the Campus; and

Whereas, the proposed Project also includes utility upgrades; new playgrounds, including play equipment/furnishings, striping, natural grass fields with irrigation, cool coating asphalt, and two play structures; new outdoor learning environments; new parking lot with photovoltaic panels; landscaping and irrigation; hardscaping; and installation of a new trash enclosure, service yard, loading zone, and transformer yard; and fencing, gates, site furnishings, and accessories; and

Whereas, a Preliminary Environmental Assessment-Equivalent (PEA-E) was conducted for the proposed Project in accordance with Department of Toxic Substances Control (DTSC) guidelines and a Removal Action Workplan (RAW) prepared to address the removal of arsenic, lead, and total petroleum hydrocarbon (TPH) impacted soil located within the Campus; and

Whereas, the District's Office of Environmental Health & Safety (OEHS) evaluated the proposed Project to determine its potential impacts on the environment in accordance with CEQA, Public Resources Code §21000, et seq., and State CEQA Guidelines, Title 14 California Code of Regulations §15000 et seq.; and

Whereas, environmental review of the proposed Project as documented in the Initial Study (IS), resulted in the preparation of a Negative Declaration (ND), which found that the Project would have no significant effects on the environment as a result of construction and operation of the Project with the implementation of LAUSD's Standard Conditions of Approval; and

Whereas, on November 8, 2023, the District filed the Notice of Intent to Adopt a Negative Declaration (NOI) pursuant to the requirements of CEQA, Public Resources Code §21000, et seq., and State CEQA Guidelines, Title 14 California Code of Regulations §15000 et seq.; and

Whereas, from November 8, 2023, to December 8, 2023, the District circulated the IS/ND, PEA-E, and RAW for public review with electronic copies on the OEHS and State Clearinghouse websites and printed copies at the OEHS District Headquarters and at 49th Street Elementary School; and

Whereas, the District responded to written and verbal comments received during the public review period and at community meetings in the Responses to Comments; and

Whereas, the District is the "Lead Agency" as defined in State CEQA Guidelines §§15050-15053, and the Board shall review and consider the ND and its supporting documents and comments.

Resolved, that the Board finds that:

The Project may not have an adverse effect on fish and wildlife, as referenced in §711.2 of the Fish and Game Code; and

The presumption of adverse effect set forth in California Code of Regulations, Title 14, §753.5(d) does not apply; and be it.

Resolved further, that the Board hereby:

1. Finds that the Negative Declaration (ND) was completed in compliance with CEQA and State CEQA Guidelines, as amended; and
2. Finds that the ND reflects the District's independent judgment and analysis; and

3. Finds that the Board reviewed and considered the information in the ND before making a decision to approve the Project; and
4. Adopts the ND; and be it.

Resolved further, that the Board specifies that the record of proceedings on which the Board's decision is based is located at the Los Angeles Unified School District, Office of Environmental Health and Safety, 333 South Beaudry Avenue, 21st Floor, Los Angeles, California, and the custodian of the record of proceedings is the Office of Environmental Health and Safety.

PASSED, APPROVED AND ADOPTED this 9th day of April 2024, by the following vote:

AYES:

NOES:

ABSENT:

ABSTAIN:

Michael McLean
Executive Officer of the Board of Education

Date